

**ADDENDUM OR AMENDMENT TO
PURCHASE AGREEMENT:
BUYER'S MOVE-IN AGREEMENT**

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1. Date _____

2. Page 1

3. ☐ **Addendum** ☐ **Amendment** to Purchase Agreement between parties, dated _____
------(Check one.)-----

4. (Date of this Purchase Agreement), pertaining to the purchase and sale of the Property at
5. _____ .

6. **NATURE AND PURPOSE:** This Agreement gives Buyer the right to enter and occupy the Property before closing on
7. the purchase of the Property. In the event of a conflict between this Agreement and any other provision of the Purchase
8. Agreement, the language in this Agreement shall govern.

9. **POSSESSION DATE:** Seller agrees to deliver possession of the Property to Buyer at _____ ☐ **A.M.** ☐ **P.M.**
------(Check one.)-----
10. on _____ .

11. **ADDITIONAL EARNEST MONEY DEPOSIT:** When Buyer signs this Agreement, Buyer shall deposit \$ _____
12. with listing broker, unless otherwise agreed to in writing, in certified funds as additional earnest money. At closing, this
13. amount shall be considered as part of the payment required under the Purchase Agreement and shall be credited
14. against the purchase price. If Buyer fails to pay the additional earnest money or close within the time frames provided
15. in the Purchase Agreement, such failure shall constitute a default.

16. **SECURITY AND DAMAGE DEPOSIT:** On _____ , Buyer shall deposit
17. \$ _____ with Seller in certified funds as security and damage deposit. The deposit shall earn statutory
18. interest at the rate prescribed in MN Statute 504B.178, Subd. 2. The deposit, plus interest, less any amounts due
19. Seller for rent for damages arising out of Buyer's breach of this Agreement, or to reimburse Seller for the cost of
20. repairing damage to the Property (including personal property and appliances) caused or resulting from Buyer's
21. possession of the Property, shall be refunded to Buyer at closing or after Buyer leaves the Property and gives possession
22. to Seller. If Seller keeps all or a portion of deposit, then Seller shall provide Buyer with a written statement within the
23. time required by MN Statute 504B.178.

24. **MOVE-IN FEE:** Buyer shall pay Seller \$ _____ per day beginning on the Possession Date and
25. continuing through the Closing Date or the date that Buyer vacates the Property, whichever happens first. Buyer shall
26. pay Seller the Move-In Fee charges in full on Possession Date. If the Purchase Agreement is not closed by the
27. scheduled Closing Date, Buyer shall pay additional Move-In Fee charges to Seller weekly, in advance. Seller shall
28. refund to Buyer any unearned Move-In Fee charges at the actual closing.

29. **UTILITIES:** Buyer agrees to place all utility services in Buyer's name effective on the Possession Date, and to pay all
30. bills for utility services during the period of Buyer's possession, as they become due.

31. **INSURANCE: Buyer and Seller shall consult with their respective insurance companies.** Seller shall maintain
32. casualty insurance coverage on the Property, to be effective through the Closing Date. Buyer shall purchase
33. and maintain liability insurance, to be effective from the Possession Date. Before taking possession of the Property
34. according to the terms of this Agreement, Buyer shall deliver to Seller an insurance binder in compliance with the
35. provisions of this Agreement. Buyer is responsible for Buyer's personal property insurance.

36. **MAINTENANCE:** Buyer shall be responsible for all repairs and maintenance of the Property and personal property
37. covered by the Purchase Agreement from and after the Possession Date. Buyer shall maintain the Property and
38. personal property in reasonable repair and order.

39. **INSPECTION:** Buyer has the right to a walk-through of the Property prior to the Possession Date to establish that
40. the Property is in substantially the same condition as of the date of the Purchase Agreement.

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41. Page 2

42. Property located at _____.

43. **USE OF PROPERTY:** Buyer shall occupy the Property exclusively as Buyer's personal residence during the term of
44. this Agreement. Buyer shall make no alterations to the existing buildings or improvements on the Property nor make
45. any other improvements on the Property during the term of this Agreement without first obtaining the written consent
46. of Seller. Buyer shall neither assign Buyer's rights nor sublease the Property under this Agreement.

47. **HOLD HARMLESS:** Seller is not responsible for liabilities, claims, or expenses from Buyer's use, possession, and
48. occupancy of the Property, and Buyer shall hold Seller harmless therefrom.

49. **QUIET ENJOYMENT:** Seller promises that upon Buyer's performance of Buyer's obligation in this Agreement, Buyer
50. shall peacefully and quietly have, hold, and enjoy the Property according to this Agreement.

51. **TERMINATION:** If the Purchase Agreement is not closed, Buyer shall leave the Property and give possession to Seller
52. within seven (7) Calendar Days from the date of Seller's written notice to leave and this Agreement shall end. Notice is
53. considered given on the date mailed to Buyer at the above address. Buyer shall leave the Property in the same condition
54. as it was when possession of the Property was delivered to Buyer. If Buyer fails to leave the Property and give possession
55. to Seller, Seller is authorized to take any action permitted by law to recover possession of the Property. Seller shall be
56. entitled to recover from Buyer, in addition to all charges and reimbursements reserved in this Agreement, damages
57. for Seller's loss of use in the amount of \$ _____ per day, beginning with the date Buyer was to have given
58. possession to Seller and all reasonable costs which result from obtaining possession of the Property and enforcing
59. the terms of the Agreement, including reasonable attorneys' fees.

60. **OTHER:** _____

61. _____

62. _____

63. _____

64. _____

65. _____

66. _____

67. _____

68. _____

69. _____
(Seller) (Date) (Buyer) (Date)

70. _____
(Seller) (Date) (Buyer) (Date)

71. **THIS IS A LEGALLY BINDING CONTRACT BETWEEN BUYER(S) AND SELLER(S).**
72. **IF YOU DESIRE LEGAL OR TAX ADVICE, CONSULT AN APPROPRIATE PROFESSIONAL.**

MN:BMA-2 (8/23)